

CV-25-000545 JPMORGAN CHASE BANK NA vs ROJAS, NIOMI – Plaintiff's Motion to Vacate Judgment; in the Alternative, Motion for New Trial – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Plaintiff now concedes that mandatory relief is unavailable. (See: *Noceti v. Whorton* (2014) 224 Cal.App.4th 1062, 1067.) Plaintiff does not offer a case for the proposition that the motion to vacate judgment may be made post-trial, but argues that the legislature would exclude that if they wanted to. However, a motion for new trial is governed expressly by Code Civ. Proc. section 657 and Rule of Court 3.1600. In this case, the Court is without jurisdiction to grant a motion for new trial given the failure of timely notice. There are no cases which support a new trial other than under the new trial statute. And even if timely notice had been given, the Court has no basis under that code section to grant a new trial. Consider the effect if this were allowed: After a trial in which counsel fails to secure a key witness due to excusable neglect, they would be entitled to a new trial or a vacatur of the judgment as a matter of right. This cannot possibly be the standard; as applied in this case it might not lead to any injustice, but as a principle it could not be enforced. The Court does not reach the issue of whether failure to provide any admissible evidence is excusable neglect.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: dae5058ff18cd613caf83b6c56b8e62ca32363fab2277f63e6c73a475a9b3735

CV-25-000545 – JPMORGAN CHASE BANK NA vs ROJAS, NIOMI – Plaintiff's Motion to Vacate Judgment; in the Alternative, Motion for New Trial – DENIED.

Plaintiff now concedes that mandatory relief is unavailable. (See: *Noceti v. Whorton* (2014) 224 Cal.App.4th 1062, 1067.)

Plaintiff does not offer a case for the proposition that the motion to vacate judgment may be made post-trial, but argues that the legislature would exclude that if they wanted to.

However, a motion for new trial is governed expressly by Code Civ. Proc. section 657 and Rule of Court 3.1600. In this case, the Court is without jurisdiction to grant a motion for new trial given the failure of timely notice. There are no cases which support a new trial other than under the new trial statute. And even if timely notice had been given, the Court has no basis under that code section to grant a new trial.

Consider the effect if this were allowed: After a trial in which counsel fails to secure a key witness due to excusable neglect, they would be entitled to a new trial or a vacatur of the judgment as a matter of right. This cannot possibly be the standard; as applied in this case it might not lead to any injustice, but as a principle it could not be enforced.

The Court does not reach the issue of whether failure to provide any admissible evidence is excusable neglect.